

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEITH RICHARDSON,

Petitioner

VS.

LACHON RICHARDSON,

Respondent

) Case Number: FDI-20-794120

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ISSUE WRIT OF EXECUTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Keith Richardson and Respondent Lachon Richardson.
- 2) On 2/28/25, the Court entered judgment, which includes a provision for Petitioner to pay Respondent \$160,000 total in \$3,500 monthly payments due on the 1st of each month until the balance is paid in full. This provision is contingent on Petitioner's accounting documents showing that business earnings from Keith's Chicken and Waffles were no greater than 5% above \$100,000 annually for 2023, and Petitioner was to provide the accounting paperwork within 30 days.
- 3) On 12/17/25, Petitioner filed a Request for Order seeking to set aside judgment under Code of Civil Procedure section 473 and Family Code section 2122. Petitioner asserts that he lacks the ability to comply with the payment terms of the judgment because his income is generated from a small business with limited liquid funds. Petitioner further asserts the Court relied on false information when entering judgment because Respondent represented that she has a \$3,000

1 monthly rent obligation despite living with her parents rent free. Petitioner states the motion is
2 based on, “actual fraud, perjury, failure to disclose material facts, and attorney abandonment.”

3 4) On 2/23/26, Respondent filed a Motion to Strike Petitioner’s Request for Order pursuant to Code
4 of Civil Procedure section 436. Respondent’s request is based on a lack of supporting documents
5 and sufficient facts and lack of proper service under Code of Civil Procedure section 1010 and
6 California Rules of Court, rule 5.92(b)(1). Attached to Respondent’s Motion to Strike are the
7 documents with which Respondent was served, and Petitioner’s supportive declaration (which
8 was filed with the Court) is not attached.

9 5) At the prior 3/3/26 hearing, the Court made a finding of good cause to continue the hearing to
10 7/7/26 at 9 AM in Dept. 403 for proper service to be effectuated and ordered as follows:

11 a. The Court declines to exercise its discretion under Code of Civil Procedure section 436;
12 Respondent’s Motion to Strike is therefore DENIED.

13 b. At least 16 Court days prior to the next hearing date, Petitioner shall reserve on
14 Respondent the 12/17/25 Request for Order and supportive declaration using a service
15 method authorized by the Code of Civil Procedure and then file form FL-335 (Proof of
16 Service) with the Court confirming service was effectuated.

17 c. At least 9 Court days prior to the next hearing date, Respondent may file a Responsive
18 Declaration.

19 d. At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply
20 Declaration.

21 6) On 3/3/26, Respondent filed a Request for Order seeking a Writ of Execution. Respondent
22 requests the Court issue Writ of Execution to permit collection on the judgment entered 2/28/25.
23 Respondent attached a proposed Writ of Execution as Exhibit A to the Request for Order, which
24 indicates the total amount due is \$190,155.07.

25 7) On 3/12/26, Respondent filed a Proof of Service by First-Class Mail – Civil indicating that the
26 Request for Order and supportive pleadings were served on Petitioner on 3/12/26.

27 **B. Findings and Order**

28 1) The Court finds good cause to **continue Respondent’s 3/3/26 Request for Order** (seeking a
29 Writ of Execution to permit collection on the judgment entered 2/28/25) **to 7/7/26 at 9 AM in**

1 **Dept. 403** to be heard on the same date as Petitioner's 12/17/25 Request for Order (seeking to set
2 aside the judgment under Code of Civil Procedure section 473 and Family Code section 2122).

3 2) Counsel for Respondent shall prepare the Findings and Order After Hearing.

4 3) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).